

Enquiries to: Ms Alison Floyd
Injury Management Consultant
Human Resources
Telephone: (07) 2891 5916
Our Ref: K-CF24/2965

**Metro South
Health**

Logan and Beaudesert Health Service

Amy Mo
Claims Representative
Work Cover Queensland

Your Ref: S23LW142013

Dear Ms Mo

I write in relation to your email to Injury Management, Human Resources (**HR**), Logan and Beaudesert Health Service (**LBHS**), Metro South Health (**MSH**) dated 2 September 2024. Within your email you sought further information regarding a Workers Compensation claim submitted by Mr Cory Lea Shepherd. Specifically, you requested a response to the following:

1. Has any of Mr Shepherd's pay been withheld?
2. Could you please confirm what is Mr Shepherd's roster like during 8/03/2024 – 31/03/2024?
3. Was there been any pay been withheld between 8/03/2024 – 31/03/2024?
4. When did the agreement EB11 come to effective?
5. When did Mr Shepherd change his employment from causal to full time?
6. Has he rescinded any of his agreements?
7. What are the relevant policy/guideline in EB11 is relevant to rostering and rest day requirements (hour requirements).

Has any of Mr Shepherd's pay been withheld?

We have no evidence to suggest, to date, that Mr Shepherd has been withheld any pay in accordance with his entitlements under *Queensland Public Health Sector Certified Agreement (No. 11) 2022* and the *Hospital and Health Services General Employees (Queensland Health) Award – State 2015*.

Corrective action was taken by Ms Chloe Taylor, Switchboard Manager, Health Information Management Service (**HIMS**), MSH as per our internal process to correct the payroll and entitlement errors (**Attachment 1 & 2**). Further, Ms Taylor contacted Mr Shepherd to advise she was following up on the matter 21 May 2024 (**Attachment 3**).

Could you please confirm what is Mr Shepherd's roster like during 8 March 2024 to 31 March 2024?

Mr Shepherd's roster pattern for the dates between 4 March 2024 to 31 March 2024 (**Attachment 4**):

Pay Period 20:

Mr Shepherd was scheduled for three night shifts, with appropriate rest days allocated. These shifts included two on Sundays and one on Saturday. On Tuesday, 11 March 2024, Mr Shepherd left

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work one hour early. Additionally, Mr Shepherd arrived 15 minutes late on both Saturday, 16 March 2024, and Sunday, 17 March 2024. Records indicate that Ms Taylor undertook appropriate management action by shortening Mr Shepherd shift, however this has still resulted in Mr Shepherd being remunerated for the 30 minutes he did not work. This has been escalated to Ms Taylor for her awareness and further rectification in the Payroll system.

Pay Period 21:

During this fortnight, Mr Shepherd was not scheduled for any night shifts. On Tuesday, 19 March 2024, Mr Shepherd took sick leave. Mr Shepherd arrived 27 minutes late on Sunday, 24 March 2024. On Monday, 25 March 2024, and Tuesday, 26 March 2024, Mr Shepherd took annual leave. Mr Shepherd was scheduled to work one full weekend and was rostered for Good Friday, 29 March 2024, and Easter Sunday, 31 March 2024. Mr Shepherd was also paid an additional days pay due to not being rostered Easter Saturday, 30 March 2024, in accordance with clause 23 of the *Hospital and Health Services General Employees (Queensland Health) Award – State 2015*.

Further, as outlined above and in response to question three (3) we have no evidence to suggest pay has been withheld from Mr Shepherd.

Mr Shepherd was paid leave entitlements for the days in which he was late and therefore not withheld pay.

When did the agreement EB11 come to effective?

Queensland Public Health Sector Certified Agreement (No. 11) 2022 was certified and operative on 26 May 2023. However, certain entitlements, such as wage increases were backdated to 1 September 2022. Any associated back payments for these entitlements were automatically applied within the Payroll system following the certification of the *Queensland Public Health Sector Certified Agreement (No. 11) 2022*.

When did Mr Shepherd change his employment from casual to full time?

Payroll records indicate Mr Shepherd became a permanent part-time employee on 3 March 2021.

Mr Shepherd increased to full-time hours on 16 October 2023 (**Attachment 5**).

Has he rescinded any of his agreements?

Mr Shepherd has not formally rescinded his 8-hour agreement which he signed on 17 June 2020. The change of Mr Shepherds contracts and adjustments in his working hours does not invalidate this agreement and therefore it remains current.

Further, we would like to stipulate that within Mr Shepherd's response included in his further evidence, titled 'Email 3' which outlined rostering concerns (**Attachment 6**), the header of the email trail indicates Mr Shepherd sent this email to himself. We have received confirmation from Ms Taylor that this email was not received (**Attachment 7**). As such, MSH has not had an opportunity to review, consider or reply to this email.

What are the relevant policy/guideline in EB11 is relevant to rostering and rest day requirements (hour requirements).

Queensland Public Health Sector Certified Agreement (No. 11) 2022 outlines:

[9.13.1]

All employees (excluding employees where schedule 3 applies) shall be provided with a roster prescribing their pattern of work. The roster shall be published at least 14 days in advance of each roster cycle. The roster will be made available electronically, or where not possible, displayed in a convenient place accessible by all employees.

Hospital and Health Services General Employees (Queensland Health) Award – State 2015 outlines the following:

[Part 5 –15]

(d) Employees must be allowed a break of not less than 10 hours between the termination of one shift and the commencement of another shift, except that 8 hours applies instead of the 10 hours in any of the following circumstances:

(i) for the purposes of changing shift rosters by shift workers who rotate from one shift to another; or

(ii) in any other case agreed upon between the employer and the employee concerned.

(j) Rostered days off - where work is performed on other than a Monday to Friday basis

(i) Unless prescribed elsewhere in this Award, all employees shall be entitled to not less than two whole consecutive rostered days off duty each week.

(ii) In lieu of two whole rostered days off in each week, an employee may be allowed in each fortnightly period either one rostered day off in one week and three consecutive rostered days off in the other week, four consecutive rostered days off or two groups of two consecutive rostered days off.

Queensland Health's stance on Section 15(J) is that 2 consecutive days refers to 48 continuous hours.

Additional information in response to My Shepherds 2nd response:

Ethical Standards Unit (ESU) Complaint

The ESU assessed that Mr Shepherd did not raise a reasonable suspicion of corrupt conduct pursuant to section 15 of the *Crime and Corruption Act 2001*.

Ms Tammy Reese, Director HIMS, MSH attempted to meet with Mr Shepherd to provide the outcome advice of the Ethical Standards Unit complaint and follow up with the concerns that could be managed locally.

Ms Reese attempted to meet with Mr Shepherd on two separate occasions on 12 July 2024 and 16 July 2024 (**Attachment 7**).

Mr Shepherd then undertook long periods of leave after this time and we were unable to meet with him. Due to his hesitation to engage with a discussion and provide the outcome Ms Reese closed the matter.

This is reasonable management action and due to the lack of particularised evidence the matter was closed in accordance with *HR Policy E12 Individual Employee Grievances*.

Feedback on roster improvement suggestions

Mr Shepherd mentioned in his most recent submission that he has not received feedback on the roster he submitted. In accordance with the *Queensland Health Business Case for Change Guideline 2018 (Attachment 8)*, it is standard practice for responses to all feedback to be provided to all staff within the release of subsequent organisational change document. Noting Ms Reese

does not hold the required level of delegation for significant organisational change, it would not be appropriate for Mr Reese to provide Mr Shepherd with feedback regarding the roster he provided. It is our understanding there is a pending release of the Implementation Plan document that contains the delegate's formal response to Mr Shepherd feedback to the Business Case for Change. MSH maintain that whilst this has been a protracted process, it has been managed in accordance with the *Queensland Health Business Case for Change Guideline 2018*.

However, as part of open and transparent communication with staff, Ms Reese has had previous conversations with Mr Shepherd regarding roster development, advising that it must be fair and equitable to all staff. She also provided some additional rostering suggestions and tips during those discussions.

Alleged date of injury

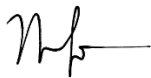
I would like to reiterate from previous correspondence by Ms Estelle Baine, Senior Director, Human Resources, LBHS, MSH that Mr Shepherd did not attend the workplace on the date of injury outlined within his WorkCover medical certificate. MSH maintain that Mr Shepherd's WorkCover claim does not meet the definition of an injury pursuant to section 32(1) of the Workers' Compensation and Rehabilitation Act 2003.

Furthermore, in the alternative whereby it is determined that Mr Shepherd's WorkCover claim does meet this definition, MSH maintain that if Mr Shepherd has sustained an injury, it is as a result of reasonable management action taken in a reasonable way. Given this, in the event Mr Shepherd's WorkCover claim is not rejected in accordance with section 32(1) of the Workers' Compensation and Rehabilitation Act 2003, it ought to be rejected in accordance with section 32(5) of the Workers' Compensation and Rehabilitation Act 2003.

Questions

If you have any questions in relation to the matters outlined in this letter, please contact Ms Alison Floyd, Injury Management Consultant, HR, LBHS, MSH on telephone (07) 2891 5916 or via email at LBH_InjuryManagement@health.qld.gov.au.

Yours sincerely



Nerisa Mumberson
Acting Principal Consultant, Human Resources
Logan and Beaudesert Health Service

6 September 2024